

As noted above, to be entitled to summary adjudication, a moving party must show that it prevails on “one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty.” (Code Civ. Proc., § 437c (f)(1).) Summary adjudication “shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (*Ibid.*) Here, defendants seek adjudication as to certain aspects of plaintiff’s one cause of action.

Issue 3 seeks to limit the statutes in question to those mentioned in the PAGA notice. Issue 4 seeks to prohibit plaintiff from raising misclassification of employees. Issue 5 seeks to eliminate certain damages because the statutory basis is inapplicable to this case. Issue 6 asserts plaintiff cannot recover any penalties for violations of Labor Code section 558 based on California Supreme authority barring the claim. Issue 7 relates to the one-year time limits for PAGA penalties. Finally, issues 8 and 9 both target the time periods during which defendants had certain payment plans in place.

Defendant would prevail on several of these issues given the correct procedural posture. Indeed, plaintiff even concedes some of the points in the opposition (issue 5, for example). Still, the questions are better suited for motion in limine, motion to strike, or stipulation. None of these issues 3-9 qualifies as completely disposing of a cause of action in conformity with Code of Civil Procedure, section 437c(f). Accordingly, summary adjudication and summary judgment must be denied.

14. 9:00 AM CASE NUMBER: N25-2451

CASE NAME: CLAIM OF:ALLISON HARVEY

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

The proposed minor’s compromise is **approved**.

15. 9:01 AM CASE NUMBER: C25-01439

CASE NAME: MICO BARGO VS. JORDAN SPIEGEL

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION PROPOUNDED TO DEFENDANT JORDAN SPIEGEL**

FILED BY: BARGO, MICO

TENTATIVE RULING:

In this motor-vehicle-accident case, plaintiff moves to compel further responses to several requests for production. The motion is **granted in part and denied in part**.

Preliminary Points

Defendant objects that plaintiff has not met the requirement of meeting and conferring. Whether or not a live or telephonic conference was required (the timing is ambiguous), however, plaintiff has provided detailed meet-and-confer letters that adequately cover the disputes, and defendant did not respond substantively to them. It thus appears that if anyone is flunking the spirit of this requirement, it may be defendant, not plaintiff.